

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Karina Herrera	Team: Squad #07	CCRB Case #: 201902729	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/19/2019 10:23 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 5/6/2021	Precinct: 104		
Date/Time CV Reported Wed, 03/20/2019 1:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/29/2019 11:07 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Abraham Ahmed	00000	941321	104 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Galvin	01328	925328	104 PCT
2. POM Diego Gutierrez	23436	962455	104 PCT
3. POF Onicker Kennedybrown	13213	964587	104 PCT
4. POM Vahan Bayizian	14039	960218	104 PCT
5. POM Malik Claybrooks	06821	965000	104 PCT
6. POM Salvatore Calvagna	09080	964957	104 PCT
7. POM Michael Amato	08960	964881	104 PCT
8. POM Andrew Incantalupo	19516	962493	104 PCT
9. POM Joseph Bartichek	12350	960209	104 PCT
10. POM Daniele Petito	26076	964213	104 PCT
11. POM Max Kardonov	06409	965767	104 PCT
12. POM Patrick Nessler	06263	963668	104 PCT
13. SGT Charles Choi	1653	922110	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Abraham Ahmed	Abuse: Lieutenant Abraham Ahmed threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . LT Abraham Ahmed	Abuse: Lieutenant Abraham Ahmed threatened § 87(2)(b) with the seizure of § 87(2)(b)'s property.	B . Exonerated

Case Summary

On March 20, 2019, § 87(2)(b) filed the following complaint with the IAB Command Center. The following was referred to the CCRB and it was received on March 29, 2019.

At approximately 10:23 p.m. on March 19, 2019, § 87(2)(b)'s daughter, § 87(2)(b) called 911 because she had a physical altercation with the residents of § 87(2)(b) in Queens because her vehicle was parked in front of their driveway. Several officers responded to the incident location, including Lieutenant Abraham Ahmed and Police Officer Diego Gutierrez from the 104th Precinct, and they requested Emergency Medical Services (EMS) so they could treat § 87(2)(b) for the injuries she sustained during the altercation. The officers ultimately decided to arrest § 87(2)(b) for § 87(2)(b) (Board Review 01).

While the Emergency Medical Technicians (EMTs) were preparing § 87(2)(b) for transport to the hospital, Lieutenant Abraham Ahmed allegedly told § 87(2)(b) that she would be arrested if she went to the same hospital as § 87(2)(b) and he instructed other officers, including Police Officer Diego Gutierrez, to arrest § 87(2)(b) if they saw her at the hospital (**Allegation A: Abuse of Authority – Threat of Arrest, Unsubstantiated**). Lieutenant Ahmed also allegedly told § 87(2)(b) that if she did not move § 87(2)(b)'s vehicle away from the driveway, it would be towed (**Allegation B: Abuse of Authority – Threat of Property Seizure, Exonerated**).

§ 87(2)(b) was not arrested or issued a summons during the incident, and the officers did not tow § 87(2)(b)'s vehicle. The NYPD Legal Department provided sixteen Body-Worn Camera (BWC) videos in regards to this incident (Board Review 02). No other video footage was found.

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Abraham Ahmed threatened to arrest § 87(2)(b).

§ 87(2)(b) stated that she entered the ambulance with her § 87(2)(b) daughter, § 87(2)(b) because she wanted to go with her to the hospital (Board Review 03). The EMTs agreed with § 87(2)(b) but Lieutenant Ahmed instructed her to exit the ambulance because § 87(2)(b) was under arrest. § 87(2)(b) then stated that she would meet the ambulance at the hospital instead. Lieutenant Ahmed told § 87(2)(b) “You better not go anywhere near the hospital.” § 87(2)(b) replied, “Well, I’m going to the hospital.” Lieutenant Ahmed responded to § 87(2)(b) “If I find out that you showed up at the hospital, you are going to be arrested.” Lieutenant Ahmed then instructed other officers, including Police Officer Gutierrez, to arrest § 87(2)(b) if she appeared at the hospital. § 87(2)(b) exited the ambulance and she did not go to the hospital at any point on the incident date.

§ 87(2)(b) stated that after she was placed in the ambulance, one of the EMTs told § 87(2)(b) that she could accompany them to the hospital (Board Review 04). § 87(2)(b) entered the ambulance and an unidentified officer also confirmed that she could go to the hospital. However, Lieutenant Ahmed eventually went to the ambulance and he instructed § 87(2)(b) to exit it because she could not go with them since § 87(2)(b) was under arrest. § 87(2)(b) insisted that she wanted to go with § 87(2)(b) to the hospital. Lieutenant Ahmed told § 87(2)(b) “If you go anywhere near the hospital or the ambulance, you will get arrested.” § 87(2)(b) exited the ambulance and it left the incident location.

The EMTs that assisted § 87(2)(b) during the incident, EMT § 87(2)(b) and EMT § 87(2)(b) did not recall § 87(2)(b) being present at any point during the incident, and they did not remember any interactions between civilians and officers at the ambulance (Board Review 05) (Board Review 06).

Lieutenant Ahmed stated that shortly after he arrived to the incident location, he spoke with § 87(2)(b) and he explained to her why § 87(2)(b) was being placed under arrest (Board Review 07). When the ambulance arrived, Lieutenant Ahmed went to it, but he did not recall any other officer who accompanied him. Lieutenant Ahmed did not recall anyone else who was in the ambulance besides § 87(2)(b) and the EMTs. Lieutenant Ahmed did not recall if he spoke to anyone at the ambulance, and he did not recall if § 87(2)(b) was there at any point. Lieutenant Ahmed did not recall if he told § 87(2)(b) that she could not go to the hospital, and he did not recall if he threatened to arrest her if she did so. Lieutenant Ahmed did not recall instructing any other officers to arrest § 87(2)(b) if they saw her at the hospital. § 87(2)(b) did not commit any arrestable offenses during the incident.

Lieutenant Ahmed explained that family members are not allowed to accompany prisoners during their transports to the hospital, and if they attempted to do so, they could be arrested for Obstruction of Governmental Administration (OGA). Although anyone may visit any hospital willingly, as a matter of department protocol, family members may only visit prisoners at a hospital after obtaining an authorization form from the precinct of occurrence. Lieutenant Ahmed mentioned that family members could be arrested for OGA if they visit a hospitalized prisoner without the necessary paperwork. Lieutenant Ahmed did not recall if he communicated this protocol to § 87(2)(b) at any point during the incident.

Police Officer Gutierrez stated that Lieutenant Ahmed went to the ambulance while § 87(2)(b) was present in order to tell § 87(2)(b) that she would be treated at the hospital and then transported to the stationhouse (Board Review 08). Police Officer Gutierrez did not remember if § 87(2)(b) spoke to Lieutenant Ahmed at any point during the incident. Police Officer Gutierrez did not remember if § 87(2)(b) ever mentioned accompanying § 87(2)(b) to the hospital, and he did not recall if Lieutenant Ahmed ever informed § 87(2)(b) that she could not go to the hospital. Police Officer Gutierrez did not recall any officer who threatened to arrest § 87(2)(b) during the incident and he did not recall any officer who instructed other officers to arrest § 87(2)(b) if they saw her at the hospital, including Lieutenant Ahmed. PO Gutierrez explained that family members are not allowed to accompany prisoners during their transports to the hospital, but he did not mention the procedure for relatives who visit the same hospital as prisoners.

When asked if § 87(2)(b) committed any arrestable offenses during the incident, Police Officer Gutierrez explained that as the officers were escorting § 87(2)(b) to the ambulance, § 87(2)(b) was “getting in the way” by following them and saying, “She shouldn’t be arrested.” In addition, § 87(2)(b) was “screaming” at the other party that was involved with the dispute with § 87(2)(b) so she could have been arrested for OGA.

Lieutenant Ahmed’s BWC footage shows him and § 87(2)(b) conversing in regards to § 87(2)(b)’s arrest at seven minutes and forty seconds, and no FADO allegations are made at this time (Board Review 09). In addition, Lieutenant Ahmed’s BWC video shows him at the ambulance on two separate occasions and § 87(2)(b) is present both times: once at forty seconds and another time at three minutes and twenty-five seconds (Board Review 10). The video does not show Lieutenant Ahmed speaking to § 87(2)(b) at any point while they are at the

ambulance, and the video ends before the ambulance leaves the incident location. PO Gutierrez's BWC captured the officers escorting § 87(2)(b) to the ambulance at eight minutes and twenty seconds, but § 87(2)(b) is not with them at that time (Board Review 14). None of the other BWC videos recorded any additional conversations between § 87(2)(b) and Lieutenant Ahmed, and it did not show § 87(2)(b) yelling at any of the other parties that were involved with the dispute with § 87(2)(b).

§ 87(2)(b) alleged that Lieutenant Ahmed threatened to arrest her if she appeared at the same hospital as § 87(2)(b) but Lieutenant Ahmed explained that going to the hospital itself is not an arrestable offense, but interfering with § 87(2)(b)'s arrest, including accompanying the ambulance and visiting her at the hospital without authorization, is considered OGA. § 87(2)(g)

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Therefore, it is recommended that **Allegation A** be **Unsubstantiated**.

Allegation (B) Abuse of Authority: Lieutenant Abraham Ahmed threatened § 87(2)(b) with the seizure of § 87(2)(b)'s property.

After the ambulance left the incident location, § 87(2)(b) stated that Lieutenant Ahmed told her, "You better move this car within three minutes because if you don't I'm going to have it towed." § 87(2)(b)'s friend ended up moving § 87(2)(b)'s vehicle away from the driveway, so it was not towed.

Lieutenant Ahmed stated that he advised § 87(2)(b) to move § 87(2)(b)'s vehicle because it was blocking the driveway, but he did not recall threatening to seize the vehicle at any point. Lieutenant Ahmed explained that he could have towed § 87(2)(b)'s vehicle because of its positioning at the time of the incident. Lieutenant Ahmed did not seize § 87(2)(b)'s vehicle during the incident because he did not want to add "insult to injury."

It is undisputed that § 87(2)(b)'s vehicle was parked in front of the driveway of the incident location because its positioning at the time of the incident was captured by Lieutenant Ahmed's BWC video at four minutes and twenty-five seconds (Board Review 09).

According to the New York Vehicle and Traffic Law, drivers are prohibited from parking their

vehicles in front of public and private driveways (Article 32, Section 1202, Subsection 2-A) (Board Review 11).

§ 87(2)(g)

It is recommended that **Allegation B** be **Exonerated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in two allegations (Board Review 12):
 - § 87(2)(b)
- Lieutenant Ahmed has been a member of service for thirteen years and has been a subject in one CCRB complaint and one allegation.
 - Case #202000678 involves one allegation of threat of arrest and it is currently pending investigation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On March 31, 2020, a Notice of Claim request was sent to the New York City Office of the Comptroller, and the results will be added to the case file upon receipt.

Squad No.: 7

Investigator: Karina Herrera Inv. Karina Herrera 04/03/2020
Signature Print Title & Name Date

Squad Leader: Vanessa Rosen Manager Vanessa Rosen April 3, 2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date